

26STCV06792 26STCV06792

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Case Number: 26STCV06792 Hearing Date: July 16, 2026 Dept: 408

1. Defendant Samantha

Squalls' Demurrer to Plaintiff P.S. ENT, LLC's Complaint is OVERRULED.

2. Defendant Samantha

Squalls' Motion to Strike Portions of Plaintiff P.S. ENT, LLC's Complaint is DENIED.

I.

BACKGROUND

On March 3, 2026, Plaintiff P.S. ENT, LLC aka PS

Enterprise, LLC ("Plaintiff") filed a

complaint against Defendant Samantha Squalls ("Defendant") alleging a single cause of action for breach of fiduciary duties.

On June 8,

2026, Defendant filed this Demurrer and Motion to strike to Plaintiff's complaint. On June 16, 2026, Plaintiff filed oppositions. On July 9, 2026, Defendant filed a reply.

II.

DEMURRER

A.

Legal Standard

"The party against whom a complaint or

cross-complaint has been filed may object, by demurrer or answer as provided in

Section 430.30, to the pleading on any one or more of" various grounds listed

in statute. (Code Civ. Proc., § 430.10.)

When

considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on

the face of the pleading or via proper judicial notice. (Donabedian v.

Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests

the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc.

v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such,

the court assumes the truth of the complaint’s properly pled or implied factual

allegations. (Ibid.) The only issue a demurrer is concerned with is

whether the complaint, as it stands, states a cause of action. (Hahn v.

Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave

to amend must be allowed where there is a reasonable possibility of successful

amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is

on the plaintiff to show the court that a pleading can be amended successfully.

(Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

However, “[i]f there is any reasonable possibility that the plaintiff can state

a good cause of action, it is error to sustain a demurrer without leave to

amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Discussion

Defendant demurs to the sole cause of action

alleged in Plaintiff’s complaint for breach of fiduciary duties pursuant to

Code of Civil Procedure section 430.10, subdivision (e) and (f), on the grounds

that Plaintiff fails to state sufficient facts to constitute such cause of

action and the complaint is uncertain.

1.

Uncertainty

A

party may demur to a complaint where “[t]he pleading is uncertain,” meaning

also that it is “ambiguous [or] unintelligible.” (Code Civ. Proc. § 430.10,

subd. (f).) “Such a demurrer should not be sustained where the allegations of

the complaint are sufficiently clear to apprise the defendant of the issues

which he is to meet.” (People v. Lim (1941) 18 Cal.2d 872, 882.) A

demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

Defendant

demurs on the grounds that Plaintiff’s allegations are uncertain and unintelligible as the complaint fails to allege facts establishing the fiduciary duty owed by Defendant and fails to specify the acts or omissions which allegedly constitute the breach of a fiduciary duty (Demurrer, at pp. 14-16, 18-20.)

The complaint alleges that Plaintiff retained Defendant, a licensed California real estate agent, to list and sell Plaintiff’s condominium located at 5162 ½ Village Green, Los Angeles, CA 90016 (“Subject Property”). (Complaint, ¶¶ 1, 4-5.) The complaint further alleges that, by virtue of their agency relationship, Defendant owed Plaintiff fiduciary duties, including utmost care, loyalty, full disclosure of all material facts, and the duty to avoid self-dealing or conflicts of interest. (Id., ¶ 6.) Plaintiff alleges that, at the time Defendant undertook the sale of the Subject Property, Defendant was experiencing financial and housing hardships and was in the process of being evicted. (Id., ¶ 8.) Plaintiff further alleges that Defendant desired to obtain possession of the Subject Property to reside in as a tenant. (Id., ¶ 9.) The complaint alleges that rather than acting diligently to market and sell the Subject Property, Defendant acted in her own self-interest and intentionally undermined efforts to sell the Subject Property, including by discouraging potential buyers, failing to properly market the Subject Property, and failing to exercise reasonable diligence to secure a sale. (Id., ¶¶ 10-11.) Plaintiff alleges that Defendant failed to disclose her personal housing circumstances, her desire to rent the Subject Property, and the resulting conflict of interest. (Id., ¶ 12.) Subsequently, Defendant allegedly persuaded Plaintiff not to proceed with a sale and to rent her the Subject Property. (Id., ¶ 14.) Plaintiff relied on Defendant’s advice and representations and agreed to rent the Subject Property to Defendant. (Id., ¶ 15.) As a result, Plaintiff alleges damages in the form of loss of opportunity to sell the Subject Property at fair market value, delay damages, lost appreciation, and other consequential damages. (Id., ¶ 17.)

The court finds that Plaintiff’s

allegations are not so uncertain that Defendant is not apprised of the issues she must meet. The complaint clearly alleges Defendant's role as a real estate agent specifically retained to sell the Subject Property and her alleged breach of the fiduciary duties owed to Plaintiff. Although the complaint could benefit from further details regarding the specific conduct that allegedly deterred potential purchasers and constituted a failure to properly market the property, any remaining ambiguities can be clarified through discovery.

Accordingly, the demurrer for uncertainty is overruled.

2.

First Cause of

Action – Breach of Fiduciary duty

“The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820.) “Breach of a real estate agent's fiduciary duty to his or her client may constitute negligence or fraud, depending on the circumstances of the case.” (Assilzadeh v. California Fed. Bank (2000) 82 Cal.App.4th 399, 415.) “A fiduciary must tell its principal of all information it possesses that is material to the principal's interests.” (Lazar v. Bishop (2024) 107 Cal.App.5th 668, 680.)

Defendant demurs to the breach of fiduciary duty claim on the grounds that Plaintiff fails to state sufficient facts to adequately allege damages proximately caused by Defendant's alleged breach. (Demurrer, at pp. 12-14.) Defendant further argues that Plaintiff's allegations of reasonable reliance and a breach of fiduciary duty are contradictory and fail to establish a proximate cause as Plaintiff's decision to rent the Subject Property was based on Plaintiff's own reasonable and informed decision-making, not on any wrongful conduct by Defendant. (Id., at pp. 16-18.)

The court finds that Plaintiff alleged sufficient facts to establish a cause of action for a breach of a fiduciary duty. The complaint alleges that when Defendant undertook the role of real estate agent to sell the Subject Property, Defendant failed to disclose her personal housing insecurities and her desire to rent the Subject Property. (Complaint, ¶¶ 8-9.) The complaint further alleges Defendant's actions to sabotage the sale

of the Subject Property. (Id., ¶¶ 10-11.) Defendant's alleged conduct reflects a conflict of interest in breach of her fiduciary duties. Plaintiff also sufficiently alleges that its decision to rent the Subject Property was based on Defendant's conflicting advice and concealment of material information. (Id., ¶¶ 12-15.) Such allegations support a claim for breach of fiduciary duties and Plaintiff's subsequent request for damages.

Accordingly, the demurrer is overruled.

III.

MOTION TO STRIKE

A.

Legal Standard

Pursuant to Code of Civil Procedure section 436, "the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) The grounds for a motion to strike must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

B.

Discussion

Defendant moves to strike Plaintiff's request for punitive damages from the complaint. (Motion, at p. 3.) Defendant argues that Plaintiff fails to allege sufficient facts to support such damages making conclusory allegations that Defendant's conduct was willful, malicious, and carried out with conscious disregard. (Ibid.)

Punitive

damages may be awarded in an action for the breach of an obligation not arising from contract upon clear and convincing evidence that a defendant has been guilty of oppression, fraud, or malice. (Civ. Code § 3294, subd. (a).)

"Malice"

is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294, subd. (c)(1).) “Oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294, subd. (c)(2).) “Fraud” is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).)

The court finds that Plaintiff sufficiently alleges Defendant’s fraudulent conduct to support a request for punitive damages based on Defendant’s purported concealment of material information in breach of her fiduciary duty as a real estate agent to persuade Plaintiff to rent her the Subject Property rather than proceed with a sale. (Complaint, ¶¶ 8-15.)

As such, the motion is denied.

IV.

CONCLUSION

1. Defendant Samantha

Squalls’ Demurrer to Plaintiff P.S. ENT, LLC’s Complaint is OVERRULED.

2. Defendant Samantha

Squalls’ Motion to Strike Portions of Plaintiff P.S. ENT, LLC’s Complaint is DENIED.